

LM Farms

From: Oturei M10C Trust <otureim10ctrust@gmail.com>
Sent: Sunday, 11 February 2024 12:55 p.m.
To: LM Farms
Subject: Re: Oturei lease renewal

Thanks for your email Lana and Micheal

Confirmation of email received regarding the lease renewal.

Regards

On Wed, Jan 10, 2024 at 8:22 AM LM Farms <lmfarms@xtra.co.nz> wrote:

Hi.

We would like to confirm in writing, that we will renew the lease, to continue until 2039.

If you could please email us, so we know that you have received the email.

Thanks

LM Farms

Lana and Michael

LM Farms

From: Mo Sullivan <sullivanmo2017@gmail.com>
Sent: Monday, 14 October 2024 5:49 p.m.
To: LM Farms
Subject: Re: Oturei renewal agreement.

I agree to the below extension of lease for Oturei m10c block

Regards

Moses Sullivan
Cell 021-299-1506

On 10 Oct 2024, at 3:26 PM, Mo Sullivan <sullivanmo2017@gmail.com> wrote:

Received, thank you.

On Thu, 10 Oct 2024 at 12:58 PM, LM Farms <lmfarms@xtra.co.nz> wrote:

Dear Mohi.

Further to our telephone discussion today we reconfirm our renewal of the Deed of Lease dated 11th December 2020.

We record that the renewal is from 1st September 2024 for a further term of five years on the same terms as contained in the Deed of Lease.

We wish to thank you for your ongoing co-operation in the exercise of this Deed of Lease.

Sincerely

Lana Gillett and Michael Slagter

On behalf of LM Farms Partnership

Between

**Carla Jane Sullivan, Mohi Waitai Sullivan and
James Henare Te Tuhi, as Trustees of Oturei M10C Ahu Whenua Trust**

and

**LJ Gillett Ltd, Michael Nicolaas Slagter and Peter Byers, as Trustees of the
Seaview Trust t/a LM Farms Partnership**

DEED OF RENEWAL AND VARIATION OF LEASE

THIS DEED dated the 11th December 2020.

BETWEEN **Carla Jane Sullivan, Mohi Waitai Sullivan and
James Henare Te Tuhi, as Trustees of Oturei M10C Ahu Whenua
Trust ("Lessor")**

AND

**LJ Gillett Ltd, Micheal Nicolaas Slagter and Peter Byers, as Trustee
Of the Seaview Trust t/a LM Farms Partnership ("Lessee")**

BACKGROUND

- A. The Lessor is the lessor of the Premises under the Lease.
- B. The Lessee has exercised the Lessee's option of a renewal of the term of the Lease.

WITNESSES AS FOLLOWS:

1. INTERPRETATION

In this deed unless the context indicates otherwise:

1.1 Definitions:

"Commencement Date" means 1 September 2019;

"Rights of Renewal" the lease contains two further rights of renewal

"Final Expiry Date" means 31 August 2039;

"Lease" means the lease of the Premises dated 21 August 2009;

"Lessee" means **LJ Gillett Ltd, Michael Nicolaas Slagter and Peter Byers,
as Trustees of the Seaview Trust t/a LM Farms Partnership**
and includes the Lessee's permitted assigns;

"Lessor" means **Carla Jane Sullivan, Mohi Waitai Sullivan and
James Henare Te Tuhi, as Trustees of Oturei M10C Ahu Whenua
Trust** and includes the Lessor's assigns;

"Premises" means 296.4828 ha Oturei M10C Block, CT ROT
10D/27; and

"Termination Date" means 1 September 2024.

1.2 Defined Expressions: expressions defined in the main body of this deed
Have the defined meaning in the whole of this deed including the
Background;

1.3 Headings: section, clause and other headings are for ease of reference
only and do not form any part of the context or affect this deed's
interpretation;

- 1.4 Joint and Several Obligations:** where two or more persons are bound by a provision in this deed, that provision will bind those persons jointly and each of them severally;
- 1.5 Parties:** references to parties are references to parties to this deed and include each party's executors, administrators and successors;
- 1.6 Persons:** references to persons include references to individuals, Companies, partnerships, associations, trusts, government departments and local authorities, in each case whether or not having separate legal personality;
- 1.7 Plural and Singular:** singular words include the plural and vice versa; and
- 1.8 Statutes and Regulations:** references to a statute include references to regulations, orders, rules or notices made under that statute and references to a statute or regulation include references to all amendments to that statute or regulation, whether by subsequent statute or otherwise.

2. RENEWAL

The term of the Lease is renewed for a further term of five years beginning on the Commencement Date and ending at midnight on the Termination Date.

3. RENT

- 3.1 Amount:** The rent for the renewed term is \$75,000 per annum (plus GST) payable by equal calendar monthly payments in advance of \$6,250.00 (plus GST).
- 3.2 Payment:** The first rent payment is due and payable on the Commencement Date and then on the 1st day of each and every month during the renewed term.

4. VARIATION

- 4.1** The lease is varied to provide for two additional rights of renewal of 5 years each, so that if exercised, the final expiry date will be 31 August 2039.
- 4.2** Fertiliser Requirements: the sum of \$50,000.00 per annum is reduced to \$25,000.00

5. CONTINUANCE

Except as expressly varied by this deed, the terms expressed or implied in the Lease continue in full force and effect during the renewed term of the Lease.

6. COSTS

Each party will pay its own costs incidental to the preparation and completion of This Deed of Renewal and Variation of lease.

Executed as a deed.

Signed by the Lessor)

Carla Jane Sullivan)

As Trustee

In the presence of:

Signature:

Full Names

Occupation:

Address:



cl/Broadhurst
Maxene Joy Broadhurst
Office Admin
7 Sewell St Taiapoi 7630

Signed by the Lessor)

Mohi Waitai Sullivan)

As Trustee

In the presence of:

Signature:

Full Names

Occupation:

Address:



cl/Broadhurst
Maxene Joy Broadhurst
Office Admin
7 Sewell St Taiapoi 7630

Signed by the Lessor)

James Henare Te Tuhi)

As Trustee

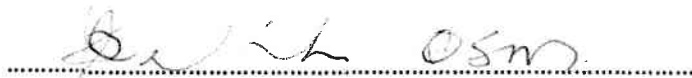
In the presence of:

Signature:

Full Names

Occupation:

Address:



Gregory Lance AGATE
Farmer

435 West coast RD 291 Otago 0371

Signed by the Lessee)

LJ Gillett Ltd)

By its director

In the presence of:

Signature:

Full Names

Occupation:

Address:



JAMES ALEXANDER SMITH

PATHWAY MANAGER

12 CRAWLEY ST, DARGAVILLE



Signed by the Lessee)

Michael Nicolaas Slagter)

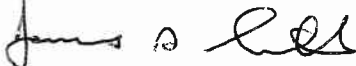
In the presence of:

Signature:

Full Names

Occupation:

Address:



JAMES ALEXANDER SMITH

PATHWAY MANAGER

12 CRAWLEY ST, DARGAVILLE



Signed by the Lessee)

Peter William Byers)

As Trustee

In the presence of:

Signature:

Full Names

Occupation:

Address:



Gavin William Austin

Accountant

Whangarei

